

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
KENNITH LEE, as PARENT & NATURAL GUARDIAN
OF MINOR K.L.,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ANTHONY BOMPAROLA, Shield No. 15054, POLICE
OFFICER MOHAMED ELHANAFI, Shield No. 15082,
SERGEANT JOHN ZANCA, Shield No. 1700, POLICE
OFFICER MICHAEL ZWEIFLER, Shield No. 14406, and
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Defendants.
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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 3, 2020

Yours, etc.



CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

POLICE OFFICER ANTHONY BOMPAROLA, Shield No. 15054, NYPD 79 Precinct,
263 Tompkins Avenue, Brooklyn, NY 11216

POLICE OFFICER MOHAMED ELHANAFI, Shield No. 15082, NYPD 79 Precinct,
263 Tompkins Avenue, Brooklyn, NY 11216

SERGEANT JOHN ZANCA, Shield No. 1700, NYPD 79 Precinct, 263 Tompkins
Avenue, Brooklyn, NY 11216

POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, NYPD 79 Precinct,
263 Tompkins Avenue, Brooklyn, NY 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
KENNITH LEE, as PARENT & NATURAL GUARDIAN
OF MINOR K.L.,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ANTHONY BOMPAROLA, Shield No. 15054, POLICE
OFFICER MOHAMED ELHANAFI, Shield No. 15082,
SERGEANT JOHN ZANCA, Shield No. 1700, POLICE
OFFICER MICHAEL ZWEIFLER, Shield No. 14406, and
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Defendants.

JURY TRIAL DEMANDED

----- X
Plaintiff KENNITH LEE, PARENT & NATURAL GUARDIAN OF MINOR K.L., by
his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein,
alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 30, 2019, at approximately 9:00 p.m., Plaintiff's MINOR K.L., while lawfully in the vicinity of 567 Putnam Avenue, Brooklyn, New York, was subject to an unlawful assault, battery, and excessive use of force by defendant Officers. Defendant Officers tackled, punched, and kicked Plaintiff's Minor K.L., causing him serious physical injury, included a fractured nose. Plaintiff's Minor K.L. was treated for his injuries at Woodhull Hospital Center. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully assaulted, battered, and subjected him to excessive force, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff, KENNITH LEE, is the PARENT & NATURAL GUARDIAN OF MINOR K.L., a resident of the state of New York and brings this action in a representative capacity for the minor Plaintiff K.L. who was subjected to the underlying claims.

3. POLICE OFFICER ANTHONY BOMPAROLA, Shield No. 15054, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident, POLICE OFFICER ANTHONY BOMPAROLA, Shield No. 15054, was assigned to the NYPD 79th Precinct.

5. POLICE OFFICER ANTHONY BOMPAROLA, Shield No. 15054, is being sued in his individual and official capacities.

6. POLICE OFFICER MOHAMED ELHANAFI, Shield No. 15082, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. On the date of the subject POLICE OFFICER MOHAMED ELHANAFI, Shield No. 15082, was assigned to the NYPD 79th Precinct.

8. POLICE OFFICER MOHAMED ELHANAFI, Shield No. 15082, is being sued in his individual and official capacities.

9. SERGEANT JOHN ZANCA, Shield No. 1700, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. On the date of the subject SERGEANT JOHN ZANCA, Shield No. 1700, was assigned to the NYPD 79th Precinct.

11. SERGEANT JOHN ZANCA, Shield No. 1700, is being sued in his individual and official capacities.

12. POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. On the date of the subject incident POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, was assigned to the NYPD 79th Precinct.

14. POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, is being sued in his individual and official capacities.

15. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers John Does #1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff's minor in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

20. In accordance with New York State law and General Municipal Law Section 50, Plaintiff's minor testified at a hearing held pursuant to General Municipal Law Section 50-H on June 11, 2020.

21. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff's minor has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On July 30, 2019, at approximately 9:00 p.m., Minor K.L. was present in the vicinity of 567 Putnam Avenue, Brooklyn, New York, when the defendant police officers unlawfully assaulted Minor K.L. without legal justification.

25. Plaintiff Minor K.L. was approached by Defendant Officers while he was standing up against his bicycle.

26. Plaintiff Minor K.L. was stationary, not riding the bicycle, but standing up with it, leaning on the seat.

27. Defendant Officers ran up to Plaintiff Minor K.L., tackled him, and threw him to the ground, causing physical injury to his right arm and shoulders.

28. Defendant Officers then began repeatedly punching Plaintiff Minor K.L. in the nose, the face, the head, and the body, causing physical injuries and contusions.

29. Defendant Officers then dragged Plaintiff Minor K.L., while handcuffed, to an NYPD van, because Plaintiff was unable to walk due to the injuries caused by Defendants.

30. At no time did Plaintiff Minor K.L. resist arrest in any way.

31. Plaintiff Minor K.L. was transported to Woodhull Hospital to be treated for his injuries, where he was diagnosed with a fracture of the right nasal bone, bilateral mid facial soft tissue swelling, and contusions.

32. Plaintiff Minor K.L. spent the night in the hospital, and then was transferred to the care of his parents.

33. Plaintiff Minor K.L. received continued medical treatment for his nasal fracture.

34. Plaintiff Minor K.L. has residual medical issues related to the assault and fracture.

35. Some of the police officer defendants observed the violation of Plaintiff Minor K.L.'s rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, using excessive force, and denying him medical treatment.

36. The unlawful assault, battery, and use of excessive force by the individually named defendants caused plaintiff Minor K.L. to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

37. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. Defendants owed a duty of care to Plaintiff's minor.

39. To the extent defendants claim that the injuries to Plaintiff's minor by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by assaulting Plaintiff's minor and causing him to sustain a nasal fracture.

40. As a direct and proximate result of such acts, defendants deprived Plaintiff's minor of his rights under the laws of the State of New York.

41. All of the foregoing occurred without any fault or provocation by Plaintiff's minor.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

44. As a result of the aforementioned conduct of defendants, Plaintiff's minor sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

45. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The use of excessive force by defendants by, amongst other things, by pushing, kicking, and tackling Plaintiff's minor constituted objectively unreasonable physical seizures of Plaintiff's minor in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

Assault

48. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff's minor in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff's minor, that such acts caused apprehension of such contact in the Plaintiff's minor.

50. As a direct and proximate result of such acts, defendants deprived Plaintiff's minor of his rights under the laws of the State of New York.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

53. As a result of the aforementioned conduct of defendants, Plaintiff's minor sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Battery

54. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff's minor, when they, in a hostile and/or offensive manner punched Plaintiff's minor in the face and nose repeatedly with the intention of causing harmful and/or offensive bodily contact to the Plaintiff's minor and caused such battery.

56. As a direct and proximate result of such acts, defendants deprived Plaintiff's minor of his rights under the laws of the State of New York.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

59. As a result of the aforementioned conduct of defendants, Plaintiff's minor sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

60. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, KENNITH LEE, PARENT & NATURAL GUARDIAN OF MINOR K.L.,. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

62. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff's minor and violated Plaintiff's minor's statutory and common law rights as guaranteed Plaintiff's minor by the laws and Constitution of the State of New York.

63. As a direct and proximate result of such acts, defendants deprived Plaintiff's minor of his rights under the laws of the State of New York.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a result of the aforementioned conduct of defendants, Plaintiff's minor sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

67. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

69. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

70. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The defendants that did not physically touch Plaintiff's minor, but were present when other officers violated Plaintiff's minor's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff's minor, whose constitutional rights were being violated in their presence by other officers.

72. Defendants failed to intervene to prevent the unlawful conduct described herein.

73. As a result of the foregoing, Plaintiff's minor's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

74. As a direct and proximate result of such acts, defendants deprived Plaintiff's minor of his rights under the laws of the State of New York.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

77. As a result of the aforementioned conduct of defendants, Plaintiff's minor sustained injuries, including but not limited to physical, emotional, and psychological injuries.

JURY DEMAND

78. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff KENNITH LEE, as PARENT & NATURAL GUARDIAN OF MINOR K.L., demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 3, 2020

By: 
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

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POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, NYPD 79 Precinct,
263 Tompkins Avenue, Brooklyn, NY 11216

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 3, 2020



CAITLIN ROBIN